

Court No. - 39

Case :- WRIT - C No. - 19590 of 2023

Petitioner :- Zafar Ali @ Guddu

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajendra Kumar Singh

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

1. Heard learned counsel for the petitioner and Shri Nitesh Patel holding brief of Shri Udit Chandra, learned counsel for the respondent No. 3.
2. The present petition has been filed praying for a mandamus commanding the respondent/authority-Executive Engineer, Electricity Distribution Division-III, District-Jaunpur to grant domestic electric connection to the petitioner in the premises/house No. 298 (old No. 161A), Mohalla Jamin Sipah, Police Station Kotwali, District-Jaunpur.
3. The petitioner claims himself to be in occupation of part of the aforesaid house though the sister of the petitioner got a sale-deed in her favour executed by their father.
4. The father of the petitioner was the original owner of the premises.
5. The original Suit No. 923 of 2009 has been instituted by the petitioner for cancellation of the sale-deed allegedly executed by the father of the petitioner in favour of the elder sister of the petitioner.
6. The petitioner supports his plea on the basis of Clause 4.4(a)(i) of the Electricity Supply Code, 2005 alleging himself to be in physical occupation of a part of the property.
7. The petition is **disposed of** with a direction to the Executive Engineer, Electricity Distribution Division-III, District-Jaunpur to decide the claim of the petitioner with a reasoned order after verifying the necessary facts and in accordance with law within a period of two months from the date a certified copy of this order is produced.

Order Date :- 31.5.2023

Mukesh Pal